

Court No. - 3

Case :- WRIT - C No. - 6947 of 2022

Petitioner :- Akhilesh Singh

Respondent :- Managing Director Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Lavkush Kumar Bhatt

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasia

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard Shri Lavkush Kumar Bhatt, learned counsel for the petitioner, learned Standing Counsel for the respondent-State and Shri Madan Mohan Chaurasia, learned counsel for the respondent nos.1 and 2.

2. This writ petition has been filed praying for the following relief:-

"i) Issue a writ, order or direction in nature of certiorari quashing the impugned recovery certificate dated 29.09.2021 issued by respondent no.2 (Annexure No.4 to this writ petition)."

3. Learned counsel for the respondent no.2 states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 25.5.2022/SK